
Town and Country Planning Act 1990

REFUSAL OF PLANNING PERMISSION

To: Mr Paul Stack
Paulstackplanning
17 Solent View Road
Seaview
Isle of Wight
PO34 5HY
United Kingdom

On behalf of Mr Peter Fairclough

Site: Land Adjacent 3 Brickfield Cottages, East Cowes Road, East Cowes, Isle of Wight
PO32 6NH

Development: Proposed detached dwelling and garage

LPA Ref No: 25/01315/FUL

In pursuance of its powers under the abovementioned Act, the Isle of Wight Council as Local Planning Authority give notice of the decision made on 07.11.2025 to **REFUSE Planning Permission** in accordance with your application, plans and particulars which were received on 10th September 2025 for the following reasons:

1. The proposed development would result in a dwelling of an inappropriate scale, height, design and appearance, adversely impacting upon the character of the area and the historical setting and significance of the adjacent listed terrace. The development would therefore be contrary to the aims of Policies DM2 (Design Quality for New Development), DM11 (Historic and Built Environment) and DM12 (Landscape, Seascape, Biodiversity and Geodiversity) of the Island Plan Core Strategy, and the objectives of the National Planning Policy Framework and Section 66 of the Planning (Listed Buildings & Conservation Areas) Act 1990.

Notes to Applicant

1. ARTICLE 35 - WORKING WITH THE APPLICANT

In accordance with paragraphs 39 of the NPPF, the Isle of Wight Council takes a positive approach to development proposals focused on solutions to secure sustainable developments that improve the economic, social and environmental conditions of the area. Where development proposals are considered to be sustainable, the Council aims to work proactively with applicants in the following way:

- The IWC offers a pre-application advice service
- Updates applicants/agents of any issues that may arise in the processing of their application and, where there is not a principle objection to the proposed development, suggest solutions where possible

In this instance the application was not considered to be a sustainable form of development and therefore, no further discussions were undertaken.

Date: 07.11.2025



Oliver Boulter
Strategic Manager Planning & Infrastructure
Seaclose Offices
Fairlee Road
Newport
Isle of Wight
PO30 2QS

All documents associated with this decision, including the officer's report, can be viewed on the council's website www.iow.gov.uk/environment-and-planning/planning/

The following notes/guidance may be applicable to you/the applicant:

TOWN AND COUNTRY PLANNING ACT 1990

NOTIFICATION TO BE SENT TO AN APPLICANT WHEN A LOCAL PLANNING AUTHORITY REFUSE PLANNING PERMISSION OR GRANT IT SUBJECT TO CONDITIONS

Appeals to the Secretary of State

- If you are aggrieved by the decision of your local planning authority to refuse permission for the proposed development or to grant it subject to conditions, then you can appeal to the Secretary of State under section 78 of the Town and Country Planning Act 1990.
- If this is a decision on a planning application relating to the same or substantially the same land and development as is already the subject of an enforcement notice [reference], if you want to appeal against your local planning authority's decision on your application, then you must do so within 28 days of the date of this notice.
- If an enforcement notice is served relating to the same or substantially the same land and development as in your application and if you want to appeal against your local planning authority's decision on your application, then you must do so within: 28 days of the date of service of the enforcement notice, or within 6 months [12 weeks in the case of a householder appeal] of the date of this notice, whichever period expires earlier.
- If this is a decision to refuse planning permission for a householder application, if you want to appeal against your local planning authority's decision then you must do so within 12 weeks of the date of this notice.
- If this is a decision to refuse planning permission for a minor commercial application, if you want to appeal against your local planning authority's decision then you must do so within 12 weeks of the date of this notice.
- If this is a decision to refuse express consent for the display of an advertisement, if you want to appeal against your local planning authority's decision then you must do so within 8 weeks of the date of receipt of this notice.
- If you want to appeal against your local planning authority's decision then you must do so within 6 months of the date of this notice.
- Householder Appeals can be made online at: <https://www.gov.uk/appeal-householder-planning-decision>. If you are unable to access the online appeal form, please contact the Planning Inspectorate to obtain a paper copy of the appeal form on tel: 0303 444 5000.
- Full Planning Application Appeals can be made online at: <https://www.gov.uk/appeal-planning-decision>. If you are unable to access the online appeal form, please contact the Planning Inspectorate to obtain a paper copy of the appeal form on tel: 0303 444 5000.
- The Secretary of State can allow a longer period for giving notice of an appeal but will not normally be prepared to use this power unless there are special circumstances which excuse the delay in giving notice of appeal.
- The Secretary of State need not consider an appeal if it seems to the Secretary of State that the local planning authority could not have granted planning permission for the proposed development or could not have granted it without the conditions they imposed, having regard to the statutory requirements, to the provisions of any development order and to any directions given under a development order.

The Isle of Wight Council's Formal Complaint Procedure can be found online at:

<https://www.iow.gov.uk/council/OtherServices/Council-Complaints/Making-a-complaint1>